

STATE OF NEW YORK SUPREME COURT
COUNTY OF NEW YORK

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THE CITY OF NEW YORK,

Plaintiff,

Index No.: 450551/2025

-against-

THE LAND AND BUILDING KNOWN AS 512 WEST 42nd STREET, also known as 510 WEST 42nd STREET, TAX BLOCK #1070, TAX LOT #20, COUNTY OF NEW YORK, CITY and STATE of NEW YORK; WEST 42nd STREET DEVELOPERS, LLC; BABY'S WEST 42 LLC; "JOHN DOE" and "JANE DOE," fictitiously named parties, true names unknown, the intended being the owners, lessees, operators or occupants of the commercial premises operating within the basement, ground floor and second floor of the building at 512 West 42nd Street, New York, New York; and any person claiming any right, title or interest in the real property which is the subject of this action,

**AFFIRMATION OF ROBERT J.
HANTMAN ATTORNEY FOR
DEFENDANT JOHN DOE**

Defendants.

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Robert J. Hantman, an attorney admitted to practice before the courts of this State, affirms this 4th day of February, 2025, under the penalties of perjury under the laws of New York, which may include a fine or imprisonment, that the following is true, and understands that this document may be filed in an action or proceeding in a court of law:

1. I am counsel for Ian Reisner ("Mr. Reisner" or "John Doe"), the long-term master leaseholder of the premises located at 512 West 42nd Street, New York, NY ("the Premises").
2. I submit this affirmation in support of Mr. Reisner's request to continue lawful operations at the Premises and to address the unfounded claims of tenancy rights asserted by Maureen Lupo ("Ms. Lupo" or "Jane Doe").

3. The purpose of this affirmation is to urge the City to refrain from shutting down the Premises and to allow John Doe, the long-term leaseholder, to continue lawful operations in full compliance with all applicable laws and regulations.

4. Contrary to the City's allegations, John Doe has diligently worked to maintain compliance with licensing and operational requirements, ensuring that the Premises is a properly managed and lawfully operating establishment.

5. The interference caused by Ms. Doe, who has wrongfully asserted tenancy rights to the Premises without any legal basis, has disrupted operations and threatens John Doe's ability to effectively manage the property in accordance with his lease obligations.

6. Ms. Doe's continued presence and unsubstantiated claims create unwarranted conflict and instability, undermining John Doe's right to operate within the parameters of the law.

7. The City's claims should not be used to deprive a lawful leaseholder of his right to operate, particularly when he has demonstrated a commitment to compliance and responsible management.

8. I also represent Mr. Reisner in a separate matter (*Reisner v. Lupo*, 650204/2025) where the Mr. Reisner, has affirmed unauthorized activities by Ms. Doe between June and December 2024.

9. True and correct copies of the relevant pleadings for this separate matter, including the summons, complaint, affirmations, and a motion for an order to show cause, are attached herein as Exhibits 1 through 47.

10. In the separate matter, Mr. Reisner, the master leaseholder of the Premises, has provided an affirmation (Exhibit 3) detailing unauthorized activities by Ms. Doe between June and

December 2024. Mr. Reisner, who has been the master leaseholder since March 2024, is a real estate developer and co-founder of Parkview Developers, with experience in hospitality management, including projects such as The Out NYC and developments on Fire Island Pines. See Exhibit 3.

11. According to Mr. Reisner's affirmation, Ms. Doe began discussions to secure a lease for the event/club space at the Premises in June 2024. *Id.* Several lease drafts were prepared and circulated, including a draft sent by Mr. Magnus Hagen on October 3, 2024, which outlined a 90-day lease. *Id.*

12. Despite extensive discussions, no valid lease was ever finalized or signed by Ms. Doe.

13. Emails exchanged in October 2024 indicate that Ms. Doe was reluctant to comply with conditions such as providing proof of insurance and security deposits required for the lease. She falsely asserted ownership over the lease despite her failure to meet the obligations set forth by the master leaseholder. *Id.*

14. Despite repeated requests from Mr. Reisner and the management team, Ms. Doe refused to provide documentation for key requirements, such as proof of insurance and security deposits necessary for lease execution. *Id.* Instead, she made assertions claiming ownership over the lease while refusing to comply with established conditions. *Id.*

15. On August 17, 2024, an email exchange took place among John Doe, Michal Kravarik, Ms. Doe, and others regarding lease negotiations and financial responsibilities related to a proposed club operation. The communications provide critical evidence of Ms. Doe's

unwillingness to comply with standard lease requirements, her disregard for transparency regarding financial backing, and her persistent misrepresentations.

16. The email chain reveals that John Doe and his team conducted due diligence to ensure that Ms. Doe had the financial capacity to fulfill lease obligations, including security payments and operational expenses. However, Ms. Doe repeatedly refused to disclose the identity or financial capacity of her investor, despite the fact that the lease terms were structured around her ability to provide a \$1.5 million key-money payment in lieu of a security deposit. Her reluctance to engage in standard business practices and demands to receive the lease on her terms, without verification of funds, raises concerns about her financial reliability and transparency.

17. Additionally, the emails highlight a conflict over Ms. Doe's intent to use hotel employees for club operations without a formal agreement in place. John Doe emphasized that any such arrangement must involve cost reimbursement and be explicitly stated in the lease, yet Ms. Doe insisted that the hotel was not entitled to any contributions from her business. This further demonstrates her disregard for clear financial agreements and her attempt to operate without proper contractual obligations.

18. Furthermore, Michal Kravarik warned that another party, Kekoon, had made a more competitive offer for the lease. Despite this, Mr. Reisner was willing to proceed with Ms. Doe's offer due to the expectation of her investor's financial backing. However, Ms. Doe's continued refusal to provide documentation verifying the investment raised legitimate concerns about her ability to meet financial obligations.

19. This email exchange serves as critical documentation of Ms. Doe's obstructionist tactics, refusal to adhere to basic leasing protocols, and misrepresentations regarding financial

arrangements. Her actions created unnecessary delays, financial uncertainty, and a significant risk to the viability of the lease agreement.

20. On November 7, 2024, multiple email correspondences were exchanged among key stakeholders, including Richard Lemmerman, Paul Brown, Ms. Doe, John Doe, and others, regarding unauthorized club events scheduled for the weekend. These emails provide critical evidence of Ms. Doe's mismanagement, lack of transparency, and disregard for legal and regulatory compliance, leading to significant operational risks.

21. In an email from Paul Brown, he explicitly instructed that a planned event featuring 50 Cent be canceled, warning that it would attract significant scrutiny from authorities, including the community board, police, and FDNY. Despite his clear directive and the need for proper licensing, it was evident that unauthorized events continued to be scheduled without the necessary approvals. Paul Brown emphasized that any future events required a minimum of two weeks' notice to obtain the required licenses and permits, reinforcing the group's commitment to legal compliance.

22. Richard Lemmerman further questioned the persistent pattern of illegally booked and promoted events, calling it reckless and self-destructive. Despite these warnings, Maureen Lupo attempted to divert attention by making unfounded accusations that another unauthorized party had been booked by Paul's competitors, which she failed to substantiate when challenged. Her inability to provide accurate information about scheduled events—despite multiple requests—demonstrates a failure in her responsibilities and a deliberate obstruction of lawful operations.

23. Additionally, Ian Reisner issued a stern warning to Maureen Lupo, demanding a full list of scheduled events, emphasizing that failure to provide this information would result in

termination. This underscores her ongoing lack of accountability and unwillingness to cooperate with management directives.

24. The email chain establishes a pattern of willful negligence, misrepresentation, and defiance of legal and operational protocols by Maureen Lupo. Her actions directly contributed to regulatory violations, exposing the venue to heightened legal scrutiny and operational risks.

25. This communication serves as crucial documentation of the ongoing mismanagement and unauthorized activities under Maureen Lupo's oversight, reinforcing her role in creating significant liability for the business.

26. On November 8, 2024, an email exchange among Richard Lemmerman, Ian Reisner, and Maureen Lupo detailed serious disturbances at the venue, unauthorized actions, and Ms. Lupo's mismanagement. The emails confirm excessive late-night noise complaints, leading to guest refunds and removal from major booking platforms. Despite warnings, Ms. Lupo allowed testing at maximum volume at 12:30 AM, jeopardizing the hotel's reputation.

27. Additionally, her security personnel forcibly removed individuals, including Richard Lemmerman and a guest of Ian Reisner, raising serious concerns about aggressive and unprofessional conduct. She also failed to return the master key, creating a security risk, and was accused of illegally selling a 7.5% stake in the business without authorization, violating fiduciary responsibilities.

28. Ms. Lupo's communication was evasive, erratic, and unprofessional, filled with exaggerations and deflections rather than addressing urgent concerns. This exchange provides clear evidence of mismanagement, regulatory violations, and reckless decision-making, which have severely damaged the business.

29. On December 29, 2024, Richard Lemmerman sent an email to Magnus Hagen outlining serious misconduct by Maureen Lupo, which led to legal, safety, and operational violations with severe consequences.

30. The email confirms that as of October 18, Ms. Lupo had no signed lease, as it was contingent upon proof of insurance, which she never provided. Despite this, she wrongfully asserted her right to occupancy, misleading law enforcement by presenting an unverified term sheet rather than a valid lease. Officers, unable to determine its legitimacy, returned the keys, allowing her unauthorized access.

31. Additionally, on November 8, Ms. Lupo permitted the use of a fog machine despite prior fire safety violations. When Richard attempted to stop the alarms from sounding, her security forcibly removed him. She later made false claims about the incident to law enforcement, further demonstrating her deceptive conduct.

32. The email also implicates Paul Brown, who failed to prevent unauthorized events despite repeated warnings. On October 31, another event proceeded without a lease, insurance, or liquor license, raising legal concerns about tacit approval.

33. This email serves as critical evidence of Ms. Lupo's pattern of negligence, misrepresentation, and reckless disregard for legal and safety obligations, resulting in significant liability and risk.

34. On February 1, 2025, an email was sent by Magnus Hagen to Ian Reisner, detailing a formal complaint filed with Google against Maureen Lupo for harassment, defamation, and the distribution of non-consensual material. The email confirms that multiple defamatory and

threatening emails were sent by Ms. Lupo to the sender and others, including professional contacts, with the intent to harm reputations and coerce through blackmail.

35. The complaint submitted to Google highlights several incidents, including Ms. Lupo's false accusations of criminal behavior, threats of legal action, and disparaging remarks. One email contained a video attachment with explicit, non-consensual content, violating Penal Law § 245.15. The email urges Ian Reisner to escalate the matter to law enforcement and document the complaint with a police report, which could strengthen the case for terminating Ms. Lupo's Google account.

36. The communication outlines the request for Google to investigate and suspend Ms. Lupo's email account to prevent further harm, citing her use of defamatory claims, threats, and unauthorized distribution of explicit material. The email exchange serves as evidence of Ms. Lupo's deliberate actions to inflict reputational and personal damage.

37. Based on the foregoing, it is respectfully requested that the Court recognize John Doe's lawful rights as the long-term net-lessee of the Premises and deny any attempts by Ms. Doe to assert tenancy rights. The relief sought herein is necessary to ensure that John Doe can operate the Premises lawfully and free from unauthorized interference.

I affirm under penalty of perjury that the foregoing is true and correct.

By: /s/ Robert Hantman
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